

		<i>Commercial Investors, Ltd. v. Jelinek</i> (1998) 60 Cal.App.4th 352, 367.) “Section 128.5 authorizes the award of attorney fees as a sanction to control improper resort to the judicial process.” (<i>Id.</i>;) “The statute permits the award of attorney fees, not simply as appropriate compensation to the prevailing party, but as a means of controlling burdensome and unnecessary legal tactics.” (<i>Id.</i>) “Section 128.5 requires much more than a party acting with ‘no good reason’ to justify an award of sanctions. There must be a showing not only of a meritless or frivolous action or tactic, but also of bad faith.” (<i>Levy v. Blum</i>, 92 Cal.App.4th at 635-636.) In any event, whether to grant sanctions is subject to the court’s discretion. (<i>Wallis v. PHL Associates, Inc.</i> (2008) 168 Cal.App.4th 882, 893.) Defendants have not shown Plaintiff’s <i>ex parte</i> applications were frivolous or submitted with bad faith. In addition, even if the safe harbor provision doesn’t apply, Defendants waited over a month after Plaintiff’s <i>second ex parte</i> application to file this motion for sanctions. Accordingly, the motion for sanctions is denied. Plaintiff shall give notice.
12	Wilson vs. Dan 2025-01523063	1. Motion for Order Requiriang Plaintiffs to Furnish Security Bond 2. Case Management Conference CONTINUED TO 7/13/26